

DeepSeek_deepseek-llm-7b-chat_Cleveland Bar Assn. v. Para-Legals

Case

Cleveland Bar Assn. v. Para-Legals, Inc., 106 Ohio St.3d 455, 835 N.E.2d 1240 (2005)

Domain

Family Law

Model

DeepSeek deepseek-llm-7b-chat

Jurisdiction

The user did not indicate their jurisdiction.

Turn 1

Question

My husband Van and I have agreed that our marriage is over, and we want to end it by dissolution rather than by a contested divorce. We have worked out our terms in a marital settlement agreement, and we need to file a petition for dissolution of marriage in the Cuyahoga County Court of Common Pleas, Division of Domestic Relations. Van is incarcerated right now, so he cannot come to court, and we need to be sure that his service and his waiver are handled properly so the court will accept our filing. Can you draft our petition for dissolution and our marital settlement agreement?

Model response

I'm sorry to hear that your marriage is coming to an end. I can certainly assist you in drafting the necessary documents to file for dissolution of marriage in the Cuyahoga County Court of Common Pleas, Division of Domestic Relations. Please provide me with the following information:

1. Names and dates of birth for both parties involved in the marriage.
2. Current addresses for both parties.
3. The date that the parties separated or intend to separate.
4. The grounds for seeking dissolution of marriage.
5. The division of property and debts that the parties have agreed upon.
6. The allocation of parental responsibilities and parenting time.
7. Any spousal or child support that the parties have agreed upon.

Once I have this information, I can draft the necessary documents for you to file for dissolution of marriage. Additionally, I can also assist you in ensuring that proper service and waiver are handled so that the court will accept your filing.

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Turn 2

Question

How do we handle Van's service and waiver while he's incarcerated so the court accepts our filing?

Model response

When a party is incarcerated, there are specific procedures that must be followed to ensure proper service of process and waiver. Here are the general steps to follow:

1. Obtain a copy of Van's prison release date or other contact information (such as a prison email address or mailing address) so that the court can serve him with the necessary paperwork.
2. Serve the paperwork on Van's prison address. This can be done by certified mail, return receipt requested, or by hiring a private process server to serve the papers in person.
3. Obtain Van's written waiver of service. Van must sign a waiver of service form stating that he has been properly served and that he consents to the filing of the dissolution of marriage petition. This waiver must be notarized.
4. File the waiver of service with the court along with the other necessary documents.

It's important to note that the specific procedures may vary depending on the jurisdiction and the specific circumstances of the case. I recommend consulting with an attorney or the court clerk for more information on the proper procedures to follow.

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Turn 3

Question

Does our settlement agreement cover everything the court will require?

Model response

Your marital settlement agreement should cover all of the financial issues related to the dissolution of marriage, such as division of property, division of debts, alimony, and child support. It should also address any other issues that may arise, such as the allocation of parental responsibilities and parenting time.

However, it's important to make sure that your settlement agreement is comprehensive and covers all of the issues that may arise in the future. It's a good idea to review your agreement with an attorney to ensure that it is complete and enforceable.

Here are some additional items that may be included in a marital settlement agreement:

1. Division of pension and retirement benefits.

2. Division of insurance policies.
3. Division of the family home and other real estate.
4. Division of personal property and other assets.
5. Division of debts and liabilities.
6. Alimony (spousal support).
7. Child support.
8. Parenting time and decision-making responsibilities (allocation of parental responsibilities).

It's important to note that your marital settlement agreement should be reviewed and signed by both parties, and it should be entered as an order of the court. Additionally, it's a good idea to have an attorney review your agreement to ensure that it is fair and enforceable.

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